

M2.2 Rules of Evidence – Opinion RASE

Learner Instructions

You are prosecuting a contested hearing in relation to charges of speed dangerous and careless driving resulting in a collision. You have multiple police witnesses.

You call the corroborator who works for the Highway Patrol and has been a police officer for 12 years. She has been a member of the Highway Patrol for the last 7 years and has 2 years' experience working with the Major Collision Investigation Unit.

The witness gives her evidence about her work history and during this she also states the following:

- that she has investigated in excess of 100 collisions, including 10 major collisions involving death or serious injury;
- she has worked as a collision reconstructionist at 5 of those major collisions; and
- she has a qualification as a collision reconstructionist.

She then gives the evidence; "I assessed the collision scene and determined that the accused was travelling on the wrong side of the road at a speed between 150 to 160 kilometres per hour immediately prior to impact."

Defence object to the evidence on the basis that it is opinion evidence and submit that the witness cannot give this evidence.

The magistrate asks you, "How can I accept this evidence?"

What do you submit? (IRAC format preferred)